

TENTATIVE RULING

Case: **Guzman v. Aono**
Case No. CV2025-3687

Hearing Date: **April 1, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Christina Guzman’s (known as Jessie Guzman) motion to redact personal information for privacy and safety is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rules 2.550-2.551.) A party requesting that a record be filed under seal must file a motion that is “accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1).) While plaintiff filed a memorandum of points and authorities and her declaration, these documents do not contain facts sufficient to justify plaintiff’s requested sealing. (*Ibid.*; see also *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 483-484.) Accordingly, there are insufficient facts to support the required findings to seal information, as stated in California Rule of Court, rule 2.550(d).

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Hendrix v. Ebay Inc.**
 Case No. CV2026-0240

Hearing Date: **April 1, 2026** **Department Fourteen** **9:00 a.m.**

While plaintiff Shannon Hendrix timely filed his opposition on March 17, 2026, he did not timely serve the opposition on defendant eBay Inc. (Code Civ. Proc., § 1005, subds. (b) & (c) [“all papers opposing a motion...shall be served by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers...are filed”]; Miller decl. ISO reply, ¶¶ 5, 11.) However, despite this untimely service, the Court, in its discretion, consider plaintiff’s opposition. (See *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

As the Court is considering plaintiff’s opposition, on its own motion, the Court **CONTINUES** defendant eBay Inc.’s motion to compel arbitration and stay action to **April 28, 2026**, at 9:00 a.m. in Department Fourteen. Defendant may file an amended reply in support of its motion by **April 8, 2026**. (See Code Civ. Proc., § 1005, subd. (b).)